



Workers' Compensation Board

STATE OF NEW YORK
WORKERS' COMPENSATION BOARD
PO BOX 5205
BINGHAMTON, NY 13902-5205
www.wcb.ny.gov
(866) 211-0644

State of New York - Workers' Compensation Board In regard to MARK ROBINSON, WCB Case #G262 6800

ADMINISTRATIVE DECISION

keep for your records

Based upon the information we have received regarding the work-related injury of MARK ROBINSON on 06/19/2020 while working for THE KL GROUP INC, the Workers' Compensation Board makes the following findings and directions:

DECISION

The claimant MARK ROBINSON had a work related injury to the right upper arm. The claimant's average weekly wage for the year worked before this work related injury or occupational disease is \$865.50 per payroll using 52 week divisor without prejudice.

AWARD: The employer and/or insurance carrier are directed to pay:

Weeks	Total Period of Disability		Weekly Compensation		Total
	From	To	Rate		
0	6/23/2020	7/10/2020	\$0.00		\$0.00
- No medical evidence.					
0.2	7/10/2020	7/13/2020	\$577.00		\$0.00
- Temporary total disability.					
Seven day waiting period has been deducted.					

Any money previously paid for the above period(s) will be deducted from the total amount.

Medical treatment and care, as necessary, for established sites of injury and/or conditions, is authorized. Treatment rendered to one of the body parts covered by the Medical Treatment Guidelines must be consistent with those Guidelines. Based upon the nature of the established injury, it is possible that the claimant will have a permanent disability. Additional monetary awards may be payable to the claimant if the injury results in permanent restriction or loss of use of an extremity. However, at this time, the Workers' Compensation Board does not have sufficient medical evidence of a permanent disability. The claimant should schedule an appointment with his/her doctor when no further improvement is expected or about one year after the injury or surgery, if surgery was performed, in order

*** Continued on next page ***

Claimant -	MARK ROBINSON	Employer -	THE KL GROUP INC
Social Security No. -		Carrier -	Sentinel Insurance Co Ltd
WCB Case No. -	G262 6800	Carrier ID No. -	W199509
Date of Accident -	06/19/2020	Carrier Case No. -	Y9571572C
District Office -	Rochester	Date of Filing of this Decision -	10/02/2020

ATENCION:

Puede llamar a la oficina de la Junta de Compensacion Obrera, en su area correspondiente, cuyo numero de telefono aparece al principio de la pagina y pida informacion acerca de su reclamacion(caso).

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Copies To:
Claimant:
Carrier:
Employer:
Other:

Case #G262 6800
MARK ROBINSON
Sentinel Insurance Co Ltd
THE KL GROUP INC
Bronk & Somers

THE KL GROUP INC
95 HALSTEAD ST
ROCHESTER, NY 14610-1923

NOTICE TO THE INJURED WORKER / DEFINITIONS OF TERMS

1. **PERMANENT INJURY**--If your injury has resulted in a permanent loss of eyesight, hearing, or serious facial scar, or any permanent defect in a finger, hand, toe, foot, leg, or arm, you may request a hearing on the issue.
2. **ALL PRESENT ISSUES RESOLVED**--This means that all current issues regarding your claim have been resolved and there are no issues in dispute at this time. Once your case is established, you are covered by your employer's insurance carrier or, if no carrier, by your employer for further related lost time and/or medical treatment. You may also be entitled to continued related medical treatment (symptomatic treatment) as needed after the closing of your case, as the course of recovery may require. If authorization for treatment is declined by the insurance carrier, you may apply to reopen your case.
3. **AVERAGE WEEKLY WAGE**--The average weekly wage established is based on an average of your earnings for an entire year prior to your injury and so may differ from your weekly salary on the date of your accident.
4. **RATE PER WEEK**--Your rate per week for 100% disability is calculated at two-thirds of your average weekly wage up to a maximum established by law at the time of your accident. If your physician indicates a partial disability, your rate may be lower. If your employer paid your wages while you were out of work and requests reimbursement, you are not entitled to any cash benefits for that period.
5. **WAITING PERIOD**--Except for Volunteer Firefighters' and Volunteer Ambulance Workers' claims, no lost wage benefits are paid for the first seven days of disability unless the disability extends beyond 14 days.
6. **MEDICAL & TRAVEL EXPENSES**--If you have spent money for medicine, drugs, transportation, or medical bills relating to your claim, you are entitled to reimbursement. Send receipts or medical bills to your employer's workers' compensation carrier or if there is no carrier, send receipts and/or medical bills to the Workers' Compensation Board. Keep a copy of them for your records.
7. **ATTORNEY/REPRESENTATIVE** - You have the right to be represented by an attorney or licensed representative at any time during the processing of your claim. If you choose to be represented, his or her fee will be set by the Workers' Compensation Board and will be deducted from any money awarded to you.

OBJECTION TO THE DECISION

STATE THE REASON(S) FOR YOUR OBJECTION: _____

Signature

Date

Telephone Number

to obtain a written report from the doctor as to permanency. The claimant should take a copy of this notice to his/her doctor. The doctor's opinion on permanency should be in accordance with the New York State Workers' Compensation Board medical guidelines and include the percentage loss of use, if any, and the basis for such finding. The claimant's doctor should use Form C-4.3 Doctor's Report of MMI/Permanent Impairment to document his or her opinion on permanency and then submit this form to the Workers' Compensation Board and the insurance carrier or self-insured employer. If the insurance carrier or self-insured employer desires to obtain its own opinion on permanency, it shall schedule a medical examination (IME) within 30 days of receipt of the claimant's medical opinion on permanency. Failure to do so without good cause shown may result in the carrier or self-insured employer being precluded from presenting an IME on the issue. No further action is planned by the Board at this time.

If you object to part or all of this decision, please state your reasons on the back of this form and return it to the address listed above (keep a copy for your records). **This decision will become FINAL on 2nd day of November, 2020 so ANY OBJECTION to it must be RECEIVED by the Board BEFORE that date to be considered timely.** Additional pages may be attached, if necessary.

Claimant - MARK ROBINSON
 Social Security No. -
 WCB Case No. - G262 6800
 Date of Accident - 06/19/2020
 District Office - Rochester

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